

**THE TERMINATION OF A MUSLIM MARRIAGE BY *TALAQ* AFTER
THE DIVORCE AMENDMENT ACT 1 OF 2024**

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1 Introduction

Muslim marriages were historically outside South Africa's statutory marriage and divorce framework, which left spouses, particularly women, exposed on dissolution.¹ In *Women's Legal Centre Trust v President of the Republic of South Africa* ("WLCT") the Constitutional Court confirmed the resulting constitutional deficiencies,² and Parliament responded with the Divorce Amendment Act 1 of 2024 ("the Amendment Act"), which commenced on 14 May 2024.³

Amina and Farouk married under Islamic law in 2012 and never registered the marriage under the Marriage Act 25 of 1961 or the Civil Union Act 17 of 2006. In March 2025 Farouk pronounced *talaq* before two witnesses. Amina disputes its effect, and Farouk seeks a declarator that it dissolved the marriage.

The Amendment Act does not declare *talaq* religiously invalid, and a court need not decide its religious validity. For civil-law purposes, however, the marriage subsists until a court grants a decree. Farouk's declarator should therefore be refused in its broad form and Amina may pursue a civil divorce. Section 6 of the Amendment Act creates a real difficulty, but it is best resolved in her favour.

2 The effect of *talaq* after the Amendment Act

2.1 The Amendment Act

Courts recognised Muslim marriages only piecemeal, for contractual and succession purposes, without regulating divorce.⁴ The Amendment Act now defines a "Muslim marriage" as one concluded in accordance with the tenets of Islam, so the parties' marriage qualifies, and amended section 3 of the Divorce Act provides that "[a] marriage, including a Muslim marriage, may be dissolved by a court by a decree of divorce".⁵ This accords with the common-law rule that a marriage ends only by death or court decree, so that civil status changes at one provable moment.⁶

¹ M Osman-Hyder, 'Termination of Muslim Marriages in the South African Legal Context: Understanding the Challenges' (2022) 33(2) *Stellenbosch Law Review* 251.

² *Women's Legal Centre Trust v President of the Republic of South Africa* [2022] ZACC 23; 2022 (5) SA 323 (CC).

³ Divorce Amendment Act 1 of 2024; Government Gazette 50651 of 14 May 2024.

⁴ *Ryland v Edros* 1997 (2) SA 690 (C); *Daniels v Campbell* NO 2004 (5) SA 331 (CC); *Hassam v Jacobs* NO 2009 (5) SA 572 (CC).

⁵ Divorce Amendment Act ss 1 and 2, amending ss 1 and 3 of the Divorce Act 70 of 1979.

⁶ J Heaton (ed), *The Law of Divorce and Dissolution of Life Partnerships in South Africa* (Juta 2014) pt 1.

The Act does not, however, abolish *talaq*. Mujuzi observes that it is silent on whether a husband retains that power, and equally silent on a wife's *khul'* or *faskh*.⁷ The question is therefore not whether Farouk's *talaq* is valid in Islamic law, but whether it removes the marriage from the Divorce Act or ousts the court's jurisdiction.

2.2 Section 6

Section 6 applies the Act to "all subsisting Muslim marriages, including a Muslim marriage (a) which was terminated or dissolved in accordance with the tenets of Islam and where legal proceedings for [its] dissolution in terms of the Divorce Act ... have been instituted but not yet finalised; and (b) which subsisted as at 15 December 2014".⁸ Farouk will argue that his *talaq* ended the marriage before any proceedings were instituted, so that paragraph (a) does not reach it.

This was the question in *H.A v N.A*, where the husband issued *talaq* before the wife instituted proceedings. The court identified section 6 as central but left the question to the main action, so the case is authority neither way.⁹ The Full Bench in *E.S v H.Z.A* has since held that the amended Act applies to Muslim marriages and that a prior *talaq* does not prevent a spouse from invoking the civil divorce process and Rule 43, rejecting any approach under which civil protection depends on which spouse acts first.¹⁰

Amina's reading should prevail for three reasons. First, paragraph (b) is a separate limb, and a marriage concluded in 2012 subsisted on 15 December 2014. Secondly, because section 3 makes the decree the dissolving act, the marriage still "subsists" in civil law, and paragraph (a) confirms that an Islamic termination does not remove a marriage from the Act. Thirdly, any timing difficulty can be cured: if Amina now issues summons, proceedings are "instituted but not yet finalised" even on Farouk's reading.

⁷ JD Mujuzi, 'Dissolving a Muslim Marriage in South Africa and the Right to Freedom from Discrimination: The Talaq v. the Divorce Amendment Act (2024) "Routes" in the Context of *H.A v N.A* (February 2025)' (2026) 26(1) *International Journal of Discrimination and the Law* 197.

⁸ Divorce Amendment Act s 6.

⁹ *H.A v N.A* (144907/2024) [2025] ZAGPPHC 121.

¹⁰ *E.S v H.Z.A* (A2023/062743) [2026] ZAGPJHC 262; 2026 (5) SA 140 (GJ).

2.3 Application

The *talaq* post-dates commencement, so retrospectivity does not arise. A declaratory order under section 21(1)(c) of the Superior Courts Act is discretionary,¹¹ and should not be granted to confirm a unilateral private act where the statute prescribes a judicial route and the other spouse opposes. The court should refuse the declarator, state that any religious consequences of the *talaq* do not prevent it from determining the parties' civil status, and leave Farouk free to seek a divorce, relying on the *talaq* as evidence of irretrievable breakdown.

3 Constitutional implications of unilateral *talaq*

3.1 Equality and dignity

A power of repudiation that is traditionally the husband's, with the wife confined to *khul'* or *faskh*, is differentiation on the listed grounds of sex and religion, presumed unfair under section 9(5) of the Constitution. On the *Harksen v Lane* NO test, impact on a historically disadvantaged group is decisive.¹² *Gumede* struck down the discriminatory proprietary regime of customary marriages, and *Mayelane* held that a status-altering act cannot be completed without the affected spouse's participation.¹³ These cases do not make Islamic law unconstitutional; they show that where a religious rule has civil consequences, those consequences must operate consistently with the Constitution. Repudiation without notice, hearing or reasons also treats a spouse as the object of a unilateral decision, which engages section 10.

3.2 Religious freedom

This is Farouk's strongest argument, and Mujuzi warns against reading the Act as if it abolished *talaq*.¹⁴ But section 15(3) requires recognition of religious marriages to be consistent with the Constitution, and section 31(2) bars the exercise of community rights inconsistently with the Bill of Rights. *Christian Education South Africa v Minister of Education* confirms that religious freedom exists within the constitutional

¹¹ Superior Courts Act 10 of 2013 s 21(1)(c).

¹² *Harksen v Lane* NO 1998 (1) SA 300 (CC); *President of the Republic of South Africa v Hugo* 1997 (4) SA 1 (CC).

¹³ *Gumede v President of the Republic of South Africa* 2009 (3) SA 152 (CC); *Mayelane v Ngwenyama* 2013 (4) SA 415 (CC).

¹⁴ Mujuzi (n 7).

framework.¹⁵ It does not include a right to alter another person's civil status without her participation. The court should accommodate: the *talaq* is recognised as a religious act, and its civil consequences remain governed by the Divorce Act.

3.3 Access to courts, children and limitation

Section 34 guarantees access to courts, and the 2024 amendments were designed to end the exclusion of Muslim spouses from them. Treating the *talaq* as a bar would deprive Amina of the mechanisms designed to protect her. Section 28(2) makes children's best interests paramount, and a unilateral *talaq* makes no provision for care, contact or maintenance. Section 39(2) requires an interpretation of section 6 that avoids recreating the exclusion identified in *WLCT*. Any limitation of Farouk's religious freedom is justifiable under section 36: the purpose is compelling, the limitation is modest because only the civil effect of the *talaq* is withheld, and no less restrictive means would protect the vulnerable spouse.

4 Practical and doctrinal challenges

The principal challenge is that two legal systems operate at once. Osman-Hyder shows that the absence of regulation exposed Muslim spouses to abuse,¹⁶ Moosa and Rautenbach discuss, in Heaton's collection, how religious dissolution may be integrated into the civil framework,¹⁷ and Amien argues that the task is to decide which consequences belong to the religious sphere and which to civil law.¹⁸

Three difficulties follow. First, gender asymmetry: if the husband may terminate unilaterally while the wife must seek *khul'* or *faskh*, treating *talaq* as ending all civil consequences would entrench unequal protection. Secondly, dual status: a spouse may be divorced in one sphere and married in the other, as Amina is. Section 5A of the Divorce Act is the bridge, because it allows a court to refuse a decree until a religious barrier to remarriage is removed.¹⁹ Thirdly, property: on divorce of a Muslim marriage the court may order the transfer of assets between the spouses, and the order must be just and equitable, having regard to direct and indirect contributions.²⁰

¹⁵ *Christian Education South Africa v Minister of Education* 2000 (4) SA 757 (CC).

¹⁶ Osman-Hyder (n 1).

¹⁷ Heaton (n 6) pt 3 (N Moosa and C Rautenbach).

¹⁸ W Amien, 'Judicial Intervention in Facilitating Legal Recognition (and Regulation) of Muslim Family Law in Muslim-Minority Countries: The Case of South Africa' (2020) 1(1) *Journal of Islamic Law*.

¹⁹ Divorce Act s 5A.

²⁰ Divorce Act ss 7(3A) and 7(4), inserted or substituted by Divorce Amendment Act s 4.

These protections would be defeated if a unilateral *talaq* ended every civil consequence before the court could consider them.

5 Interpretation, counterarguments and order

Farouk will say that the Act does not expressly abolish *talaq*, that section 15 protects religious practice, and that section 6(a) itself refers to marriages terminated under Islamic tenets. The point has force, but it does not follow that a *talaq* deprives Amina of her civil-law rights. Section 3 provides for dissolution by decree, section 6(b) covers the 2012 marriage, the Act's protections for children, property and forfeiture would be frustrated if a spouse could avoid them by pronouncing *talaq*, and *E.S v H.Z.A* is authority that a prior *talaq* does not bar civil divorce or Rule 43 relief.²¹ Section 39(2) points the same way. Distinguishing religious from civil dissolution also serves legal certainty, because the marriage ends by one public and provable act, a decree.

Amina can issue summons, which disposes of the section 6(a) argument; *S.W v A.L* is relied on only for the narrow point that a *talaq* did not oust the court's jurisdiction in Rule 43 proceedings.²² She can claim interim maintenance and a contribution to costs, and her continued occupation of the home is protected by section 26(3) of the Constitution, which bars eviction without a court order.

6 Conclusion

Amina and Farouk's marriage is a Muslim marriage within the amended Divorce Act and subsisted on 15 December 2014. The *talaq* may retain religious significance but does not dissolve the marriage in civil law, which continues until a court grants a decree. Section 6 creates uncertainty, but it is best resolved by the text of sections 3 and 6(b), the remedial purpose of the Act, *E.S v H.Z.A* and section 39(2). Farouk's declaration should be refused, and Amina should remain free to pursue divorce, interim relief and financial remedies. That approach reconciles Islamic principles with the Constitution and protects equality, dignity, access to courts and legal certainty.

²¹ *E.S v H.Z.A* (n 10).

²² *S.W v A.L* (2025/094930) [2025] ZAWCHC 440.

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